

#	Case Name	Tentative
		conduct must still satisfy the elements of negligent infliction of emotional distress, which typically requires either physical injury or conduct that is particularly likely to cause severe emotional distress. <i>Jones v. Department of Corrections & Rehabilitation</i> (2007) 152 Cal.App.4th 1367. The allegations described—discriminatory comments and exclusionary workplace behavior—do not meet this threshold and remain within the category of personnel management disputes that cannot support personal liability against a supervisor for emotional distress, whether characterized as intentional or negligent. Based on the above, the demurrer to the 5th cause of action is SUSTAINED with leave to amend. The amended complaint (if any) shall be filed within 10 days of this order. The case management conference is continued to March 15, 2027 at 9:00 a.m. in this department. Moving defendant shall give notice of this ruling.
53.		
54.	Applegate v. Everts 2025-01507318	Defendant Brockton Everts' Motion to Set Aside/Vacate the Default is GRANTED. Defendant seeks relief from default pursuant to CCP § 473(b). Section 473(b) provides, in pertinent part: The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. ... No affidavit or declaration of merits shall be required of the moving party. The law favors a trial on the merits, and doubts in applying Code of Civil Procedure section 473 are resolved in favor of the party seeking relief from default. (<i>Iott v. Franklin</i> (1988) 206 Cal. App. 3d 521, 526.) If a party moves promptly for default relief, or if the granting of the relief from default will

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		not prejudice the opposing party (other than losing the advantage of the default), only slight evidence will justify an order granting such relief. (<i>Id</i>; <i>Fasuyi v. Permatex, Inc.</i> (2008) 167 Cal.App.4th 681, 695.) Here, the default was entered against Defendant on November 12, 2025. (ROA 13). Defendant filed this motion with the court on April 20, 2026, within the six-month limit defined in Section 473. (ROA Nos. 21, 23, 25.) In the declaration, Defendant explains the circumstances that led to the default. Plaintiff in opposition does not present any evidence of prejudice. Given the liberal policy of favoring a determination on the merits, the court finds that Defendant has met the standard for relief from default under section 473(b). Accordingly, the motion is GRANTED. Defendant is to file and serve the proposed Answer within 10 days. The order to show cause is discharged. A case management conference is scheduled for March 15, 2027 at 9:00 a.m. in this department. Defendant shall give notice of this ruling.
55.		
56.	Horste v. SC Investments LLC 2023-01302494	The motion by plaintiff Angelle Horste to lift the arbitration stay, withdraw claims from arbitration, and impose monetary sanctions, pursuant to Code Civ. Proc., § 1281.98, is DENIED. This matter was ordered to arbitration pursuant to a post-dispute arbitration agreement (ROA 76), to which Code Civ. Proc., § 1281.98 does not apply. (<i>Trujillo v. J-M Manufacturing Co., Inc.</i> (2024) 107 Cal.App.5th 56, 70 ["We conclude the Legislature intended to limit section 1281.98's applicability to arbitration arising from a predispute agreement"]; disapproved on separate grounds by <i>Hohenshelt v. Superior Court</i> (2025) 18 Cal.5th 310, 349; see also Cal. Rules of Court, Rule 8.1115, subd. (e)(2) ["After decision on review by the Supreme Court, unless otherwise ordered by the Supreme Court ... a published opinion of a Court of Appeal in the matter ... is citable and has binding or precedential effect, except to the extent it is inconsistent with the decision of the Supreme Court or is disapproved by that court"].)